

IMO MEPC 77 Meeting Summary

January 05, 2022

The seventy-seventh session of the Marine Environment Protection Committee was held virtually from 22 to 26 November 2021.

Harmful Aquatic Organisms in Ballast Water

Application of the BWM Convention to ships operating at ports with challenging water quality

MEPC 77 had for its consideration a proposal for a BWM circular on application of the BWM Convention to ships operating at ports with challenging water quality, intended to provide all stakeholders including Member States and shipowners with a clear understanding of the Committee's expectations in terms of ballast water management requirements for ships operating at ports with challenging water quality.

However, due to the large number of issues to resolve, the proposed BWM Circular could not be finalized and the Committee focused on fundamental elements that could form the basis for future deliberations with a view to finalizing. In this regard, the Committee invited Member States and international organizations to submit further proposals with regard to guidance on measures that might be taken when BWMS encounter challenging uptake water quality, taking into account the fundamental elements established at this session.

The fundamental elements are available in [MEPC 77/WP.10 Annex 2](#).

Proposal for extending the experience-building phase (EBP) associated with the BWM Convention

MEPC 71 adopted resolution MEPC.290(71) establishing the EBP associated with the BWM Convention to allow MEPC to monitor and improve the Convention.

The Committee noted that at the ongoing stage 1 of the EBP, substantial data had been collected on implementation of the Convention from 35 Member States and seven other stakeholders corresponding to approximately 15,000 ships,

which was being analyzed with a view to submission of the full data analysis report by the Secretariat to MEPC 78.

Considering the aforementioned, the Committee agreed to consider a possibility of extending the EBP in conjunction with the data analysis report.

Unified interpretation of regulations E-1.1.1 and E-1.1.5 of the BWM Convention

The Committee approved a unified interpretation (UI) of the Date to be used for determining the implementation of mandatory commissioning testing of individual ballast water management systems in accordance with [resolution MEPC.325\(75\)](#) as set out in [BWM.2/Circ.66/Rev.2](#).

The UI clarifies the date of the mandatory commissioning testing is at the initial or additional survey completed on or after 1 June 2022.

Air Pollution Prevention and Energy Efficiency

2021 Guidelines for Exhaust Gas Cleaning Systems (EGCS)

MEPC 77 adopted resolution MEPC.340(77) on 2021 Guidelines for EGCS, which supersedes the 2015 Guidelines. The revised Guidelines can be found in [MEPC 77/WP.8, Annex 1](#).

It was agreed to apply the revised guidelines when allowing the use of EGCS in accordance with regulation 4 of MARPOL Annex VI:

1. to exhaust gas cleaning systems installed on ships the keels of which are laid or which are at a similar stage of construction on or after date of adoption plus six months; or
2. to exhaust gas cleaning systems installed on ships the keels of which are laid or which are at a similar stage of construction before the date of adoption plus six

months, which have a contractual delivery date of EGCS to the ship on or after date of adoption plus six months or, in the absence of a contractual delivery date, the actual delivery of the exhaust gas cleaning system to the ship on or after date of adoption plus six months; or

3. to existing EGCS which have undergone amendments, as those specified in paragraphs 4.2.2.4 or 5.6.3 of the 2021 EGCS Guidelines, on or after date of adoption plus six months.

The following changes to the 2021 Guidelines were made during MEPC 77:

1. the definition of 'phenanthrene equivalent' has been modified;
2. the requirements for turbidity monitoring equipment has been clarified to align with ISO 7027;
3. a new paragraph has been added advising that the OMM should be approved by the Administration and retained on board so that it would be available for surveys, in order to ensure consistency with other EGCS documentation; and
4. a clarification has been added to advise that the transitory periods of emission exceedances and/or spikes in the recorded output in the Emissions Ratio do not necessarily mean non-compliant exceedance of emissions.

Revised Guidance on indication of ongoing compliance in the case of the failure of a single monitoring instrument, and recommended actions to take if the EGCS fails to meet the provisions of the EGCS Guidelines (MEPC.1/Circ.883)

MEPC 77 approved [MEPC.1/Circ.883/Rev.1](#) and agreed that only the flag and port State's Administrations should be notified to decide on appropriate action to take in such cases of failure lasting more than 1 hour or repetitive malfunctions, and should the ship exceptionally need to continue on its intended voyage in a non-compliant condition. The revised circular applies to all versions of the EGCS Guidelines.

Evaluation and harmonization of rules and guidance on the discharge of discharge water from EGCS into the aquatic environment, including conditions and areas

MEPC 77 agreed to the title of output 1.23 being "Evaluation and harmonization of rules and guidance on the discharge of discharge water from EGCS into the aquatic environment, including conditions and areas". The Committee also agreed to the scope of work, as set

out in annex 3 to document [MEPC 77/WP.8](#), with a target completion year of 2022. The word 'possible' was deleted from the following item in part 3: Regulatory matters:

"Identify, and develop as appropriate, possible regulatory measures and instruments". It is understood that the retention of the term 'appropriate' in this part of the scope is to not preempt the need for further regulatory measures and instruments.

All documents submitted to MEPC 75 and MEPC 76 commenting on the scope will be forwarded to PPR 9 (April 2022) for further consideration.

Guidance on treatment of innovative energy efficiency technologies for calculation and verification of the attained EEDI

The 2013 "Guidance on treatment of innovative energy efficiency technologies for calculation and verification of the attained EEDI" (MEPC.1/Circ.815) was agreed by MEPC 65 and circulated to assist stakeholders and innovators by providing a methodology for calculation, survey and certification of innovative energy efficiency technologies, i.e., those that were not already covered by the available EEDI guidance. The guidance was to be kept under review to provide for experience gained in the use of such technologies, but also to cover newer energy efficiency developments as they occurred.

MEPC 77 approved [MEPC.1/Circ.896](#) on 2021 Guidance on treatment of innovative energy efficiency technologies for calculation and verification of the attained EEDI and EEXI. The updated guidance revokes MEPC.1/Circ.815.

Marine Plastic Litter from Ships

Strategy to address marine plastic litter from ships

In recognition of the urgency to address marine plastic litter from ships, MEPC 73 adopted the Action plan to address marine plastic litter from ships ([resolution MEPC.310\(73\)](#)).

MEPC recognized the need to develop an IMO Strategy to address marine plastic litter from ships to guide, monitor and oversee the timely and effective implementation of the Action Plan.

MEPC 77 adopted resolution MEPC.341(77) on Strategy to address marine plastic litter from ships. It aims to strengthen the international framework and compliance with the relevant IMO instruments, endeavouring to

achieve zero plastic waste discharges to sea from ships by 2025.

A review of the strategy will be undertaken in 2025 and a review of the actions within the Action Plan will be undertaken in 2023.

Garbage Record Book mandatory for ships of 100 GT and above

MEPC 77 supported a proposal to make the requirement in MARPOL Annex V to have a Garbage Record Book mandatory also for ships between 100 and 400 GT. The PPR sub-committee was instructed to prepare draft amendments to MARPOL accordingly.

Pollution Prevention and Response

Reduction of the impact on the Arctic of Black Carbon emissions from international shipping

MEPC 77 adopted resolution MEPC.342(77) on Protecting the Arctic from shipping Black Carbon emissions, which calls for the voluntary use by ships operating in or near the Arctic of distillate oil fuel of or other cleaner alternative fuels or methods of propulsion.

MEPC 77 endorsed the terms of reference set out in paragraph 5.23 of the document [PPR 8/13](#) for the output on "Reduction of the impact on the Arctic of Black Carbon emissions from international shipping" and agreed to extend the target completion year of the output to 2023.

Draft amendments to MARPOL Annex II related to the GESAMP Hazard Evaluation Procedure for Chemicals Carried by Ships, 2019

MEPC 77 approved the draft amendments to MARPOL Annex II and requested the Secretary-General to circulate them in accordance with MARPOL Article 16(2), with a view to adoption at MEPC 78.

The draft amendments can be found in document [MEPC 76/9](#).

Reduction of GHG Emissions from Ships

Proposals related to the 2050 level of ambition and the revision of the Initial IMO GHG Strategy

After extensive but inconclusive discussions if IMO should target to fully decarbonize international shipping by 2050 the Committee agreed to initiate the revision of the Initial IMO Strategy on Reduction of GHG Emissions from Ships, as foreseen by the Initial Strategy, with the following terms of reference:

"Taking into account the progress made by the Organization since the adoption of the Initial GHG Strategy, the "key stages" for the adoption of a Revised IMO GHG Strategy, as set out in section 6.2 of the Initial GHG Strategy, relevant data, and in accordance with the timeline described in the Programme of follow-up actions of the Initial IMO Strategy on Reduction of GHG Emissions from Ships up to 2023, conduct a revision of the Initial GHG Strategy with a final draft Revised IMO GHG Strategy to be considered by MEPC 80 (spring 2023), with a view to adoption."

Accordingly, the Committee invited interested Member States and international organizations to work together and to submit concrete proposals for a Revised IMO GHG Strategy to MEPC 78 for consideration.

Outcome of the ninth meeting of the Intersessional Working Group on Reduction of GHG Emissions from Ships (ISWG-GHG 9)

ISWG-GHG 9 commenced the development of draft stand-alone life cycle GHG/carbon intensity guidelines for marine fuels (draft LCA guidelines) taking into account documents submitted to the seventh and ninth meetings of ISWG-GHG, and to MEPC 76. ISWG-GHG 9 identified a number of priority areas for further work that will be continued by ISWG-GHG 11 meeting scheduled for March 2022.

ISWG-GHG 9 also discussed the reduction of methane slip, and the Committee noted that methane emissions would be further considered in the context of the life cycle GHG/carbon intensity guidelines by ISWG-GHG 11.

Outcome of the tenth meeting of the Intersessional Working Group on Reduction of GHG Emissions from Ships (ISWG-GHG 10) in conjunction with proposals for mid- and long-term GHG reduction measures submitted to this session of the Committee

The Committee noted the ISWG-GHG 10 discussion on how to undertake a lessons learned exercise of the comprehensive impact assessment of the short-term measure. The Committee endorsed the ISWG-GHG 10 recommendation that the outcome of the lessons learned exercise also serve as the outcome of the review of MEPC.1/Circ.885 and that the lessons learned exercise of the comprehensive impact assessment of the short-term measure should be completed by MEPC 79 in order to apply the improved procedure from Phase II of the Work plan for the development of mid- and long-term measures.

ISWG-GHG 10 further considered midterm GHG reduction measures in the context of Phase I of the Work plan for the development of mid- and long-term measures. This will be further considered at the ISWG-GHG 12 meeting scheduled for May 2022.

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Revised proposal on the establishment of the International Maritime Research and Development Board (IMRB)

The proposal for establishing an International Maritime Research and Development Board (IMRB) and the associated IMO Maritime Research Fund (IMRF) that was briefly discussed at the two previous Committee meetings (i.e. MEPC 75 and MEPC 76) was discussed again at this meeting. While there was increased support for the proposal the Committee noted many other delegations opposed the approval of the proposal because of remaining concerns related to, inter alia, technology transfer, redistribution of funds, governance mechanism and access to R&D. Therefore, the Committee instructed ISWG-GHG 12 to further consider the proposal for an IMRB and associated fund.

Proposals for the revision of the IMO ship fuel oil consumption data collection system (DCS)

The Committee considered proposals for the inclusion of information on the ship's required and attained Energy

Efficiency Existing Ship Index (EEXI) and carbon intensity indicator (CII) values and rating in the IMO Data Collection System (DCS), and the creation of a new public database with accessibility for a ship's attained carbon intensity indicator (CII) and associated rating.

The Committee noted the two proposals and agreed to instruct ISWG-GHG 11 to further consider the proposals with a view to advising MEPC 78 on a way forward.

Cross-referencing tables between the versions of MARPOL Annex VI

MEPC 77 approved [MEPC.1/Circ.897](#) on Cross-reference tables for amendments to MARPOL Annex VI (2021 Revised MARPOL Annex VI) providing the correlation between the 2021 Revised MARPOL Annex VI and the previous MARPOL Annex VI, noting that it was to be applied from 1 November 2022 when the 2021 Revised MARPOL Annex VI would enter into force.

Work Programme of the Committee and Subsidiary Bodies

Proposal for new output on amendments to regulation 13.2.2 of MARPOL Annex VI

MEPC 77 agreed to include a new output on "Revision of regulation 13.2.2 of MARPOL Annex VI to clarify that a marine diesel engine replacing a boiler shall be considered a replacement engine" in the post-biennial agenda of the Committee, assigning the PPR Sub-Committee as the associated organ, with one session needed to complete the work.

Proposal for new output on review of the 2014 Standard specification for shipboard incinerators (resolution MEPC.244(66))

MEPC 77 agreed to include a new output on "Review of the 2014 Standard specification for shipboard incinerators (resolution MEPC.244(66)) on fire protection requirements for incinerators and waste stowage spaces" in the biennial agenda of the SSE Sub-Committee for the 2022-2023 biennium and the provisional agenda for SSE 8, with a target completion year of 2022.

PROVISIONAL LIST OF MEPC 77 RESOLUTIONS AND CIRCULARS

Resolution MEPC.340(77) - 2021 Guidelines for Exhaust Gas Cleaning System

Resolution MEPC.341(77) - Strategy to address marine plastic litter from ships

Resolution MEPC.342(77) - Protecting the Arctic from shipping Black Carbon emissions